

25STCV28883 25STCV28883

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 25STCV28883 Hearing Date: July 16, 2026 Dept: 732

Superior Court of California

County of Los Angeles

Department 732

ROBERT

H. SCHWAB SURVIVOR'S TRUST;

Plaintiff,

vs.

ELIJAH

H. MYERS, et al.;

Defendants.

Case

No.:

25STCV28883

Hearing

Date:

July

16, 2026

[TENTATIVE]

RULING RE:

Plaintiff Robert H. Schwab Survivor's Trust's application for entry of default judgment against Defendants Elijah H. Myers and Lindsey K. Myers.

Plaintiff

Robert H. Schwab, as Trustee of the Robert H. Schwab Survivor's Trust ("Plaintiff") seeks entry of default judgment against Defendants Elijah H. Myers and Lindsey K. Myers ("Defendants") in the amount of \$1,895,675.00 jointly against Lindsey Myers and Elijah Myers, plus an additional \$992,000 judgment solely against Elijah Myers.

Default

judgment cannot be entered for the following reasons.

In

this court's order of June 11, 2026, denying Plaintiff's prior default judgment application, the court noted that the Complaint failed to state any cause of action, because it was brought by a trust without capacity to sue, instead of the trustee. (6/11/2026 Order.) Plaintiff has since filed an amended complaint substituting the trustee in place of the trust. (See 7/13/2026 FAC.) But no proof of service of this amended pleading has been filed.

Moreover,

the filing of an amended pleading reopens the default, and requires service of the summons upon a non-appearing defendant.

"It is settled that where, after the default of a defendant has been entered, a complaint is amended in a matter of substance as distinguished from a matter of form the amendment opens the default, and unless amended pleadings be served on the defaulting defendant no judgment can properly be entered on the default." (Tidwell v. Henricks (1954) 124 Cal.App.2d 64, 65–66.) Thus the FAC must be served upon Defendants and default entered against them before default judgment may be had.

Additionally,

the proposed judgments against Defendants are not sought with a filled-out CIV-100 form, as required by Cal. Rules of Court ("CRC") Rule 3.1800, subd.

(a). The form presented with Plaintiff's prior default judgment application was for a clerk's judgment, not judgment by the court, sought only one joint judgment against both Defendants (not the separate judgments now sought), and did not include a valid answer to Item 8 on the form. That item asks Plaintiff to verify that individual defendants are not members of the U.S. military via a number of options, but Plaintiff responded only: "Defendants are readily known to Plaintiff and are not in the U.S. military." This statement is verified by Plaintiff's attorney, not Plaintiff himself.

Since

the order on Plaintiff's prior default judgment application, Plaintiff has supplied affidavits in support of the damages sought, in compliance with Code of Civil Procedure § 585, subd. (b), and CRC Rule 3.1802, subd. (a)(1). However, the declaration of Robert H. Schwab purports to authenticate a variety of exhibits and promissory notes, which are not attached to the declaration filed with the court. (Schwab Decl. ¶¶ 6–14.)

Additionally, it is evident

from the declaration of Robert Schwab that Plaintiff seeks an award of \$2,535,000 in principal damages (Schwab Decl. ¶ 3), including interest in the amount of \$353,000.00. (Schwab Decl. ¶¶ 15–16.) But Plaintiff does not provide an interest computation as required by CRC Rule 3.1802, subd. (a)(3).

Defendant seeks an award of

attorney fees. (See Proposed 7/13/2026 Joint Judgment against Defendants.) It is unclear if this request is a typographical error in which the amount sought for fees is really intended to be the amount sought for costs. (See 1/27/2026 CIV-100 Form [seeking \$675 in costs].) In any case, Plaintiff does not provide a statutory or contractual basis for attorney fees. If the agreements or promissory notes contain such language, said documents have not been filed with the court.

Finally, the court notes that

this is an action on written obligations to pay money. "In all cases in which judgment is rendered upon a written obligation to pay money, the clerk must, at the time of entry of judgment, unless otherwise ordered, note over the clerk's official signature and across the face of the writing the fact of rendition of judgment with the date of the judgment and the title of the court and the case." (CRC Rule 3.1806.) Thus, at the time default judgment is entered,

Plaintiff shall be required to present the original promissory notes or contracts sued upon for the clerk to note over their official signature across the face of the writing the fact and date of judgment.

The request for entry of default judgment is therefore DENIED for the above reasons.

Dated:

July 16, 2026

Hon. Richard S. Kemalyan

Judge
of the Superior Court